

		Plaintiffs are granted 15 days leave to file an amended complaint. Moving party shall give notice.
55.	SAN22, LLC v. Ghassemieh 2023-01342781	Defendant Majid Ghassemieh’s motion to set aside default and default judgment is DENIED. Majid Ghassemieh (hereinafter, Majid) has brought this motion on his own behalf and also on behalf of the Estate of Shelli Ghassemieh. First, to the extent Majid has brought this motion on behalf of the Estate of Shelli Ghassemieh—it is denied as Majid is a self-represented litigant. “[A] conservator, executor, or personal representative of a decedent’s estate who is unlicensed to practice law cannot appear in propria persona on behalf of the estate in matters outside the probate proceedings.” (<i>Hansen v. Hansen</i> (2003) 114 Cal.App.4th 618, 619, 621.) Next, even if the court were to consider the merits of the claim on behalf of the Estate of Shelli Ghassemieh, the motion (and that of Majid) is also denied as untimely. Majid has brought motion under the discretionary provision of Code of Civil Procedure section 473, subdivision (b) (section 473(b)). (See Mtn. P&As at p. 5; M. Ghassemieh Decl., in passim.) A motion for relief under the discretionary relief provision of section 473(b) must be made “within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc., § 473, subd. (b).) Because the default and default judgment are separate procedures, a party must seek discretionary relief within six months of <i>each</i> of these procedures—i.e., if a party wants to set aside its <i>default</i>, the motion must be brought within six months of the entry of default. If the party only wants to set aside the default <i>judgment</i> (e.g., because it exceeds the amount demanded in the complaint), the motion need only be filed within six months of the entry of judgment. This six-month time limitation is jurisdictional; the court has no power to grant relief under section 473 once the time has lapsed. (<i>Austin v. Los Angeles Unified School Dist.</i> (2016) 244 Cal.App.4th 918, 928 (<i>Austin</i>).)

		Thus, where a motion under the discretionary relief provision is filed less than six months after entry of the default judgment, but more than six months after entry of its default—the court must deny the motion because it cannot set aside the default and allow the defendant to answer. And “because it [can]not set aside the default, it also [can]not set aside the default judgment ... because that would be ‘an idle act.’ ” (<i>Pulte Homes Corp. v. Williams Mechanical, Inc.</i> (2016) 2 Cal.App.5th 267, 273 (<i>Pulte Homes</i>)). “ ` ` ... If the judgment were vacated, it would be the duty of the court immediately to render another judgment of like effect, and the defendants, still being in default, could not be heard in opposition thereto. ...” ‘ [Citations.]’ ” (<i>Ibid.</i>) Here, Majid filed this motion on 9/13/24, less than six months after the entry of default judgment on 5/14/24, but more than six months after the entry of the defendants’ defaults on 11/3/23 and 11/9/23. (ROA Nos. 14, 16.) The motion is therefore untimely and must be denied. (See Code Civ. Proc., § 473, subd. (b); <i>Austin, supra</i>, 244 Cal.App.4th at p. 928; <i>Pulte Homes, supra</i>, 2 Cal.App.5th at p. 273.) The court declines to rule on plaintiff’s evidentiary objections as they are not material to the determination of this motion. Plaintiff shall give notice.
56.	Martinez v. Ford Motor Company 2023-01365862	Defendant Ford Motor Company’s demurrer to the First Amended Complaint of Plaintiff David Martinez is SUSTAINED. (Code Civ. Proc. §430.10, subd. (e).) Plaintiffs shall have 21 days to file a Second Amended Complaint. <u>Sixth Cause of Action (Fraudulent Concealment)</u> To plead a cause of action for fraudulent concealment, the plaintiff must allege facts demonstrating, “(1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of the fact. [Citation.]”